

ASCII MASTER FLOW – PANEL 1/12: Constitutional right, RTI identity and public-authority test

ARTICLE 19(1)(a) -> constitutional right to know

RTI ACT, 2005 -> statutory access and enforcement machinery.

INFORMATION

existing material held by or controlled by a public authority, including accessible private-body material.

PUBLIC AUTHORITY: Constitution | law | notification/order | ownership/control | substantial finance.

LIMIT

RTI gives covered records, not compelled creation of answers or opinions.

ASCII MASTER FLOW – PANEL 2/12: Proactive disclosure and the request route

SECTION 4

record management + organisation, powers, norms, budgets and decision reasons
-> maximum proactive disclosure -> minimum resort to applications.

SECTIONS 5-7

PIO/APIO -> request without reasons -> ordinary 30 days | life/liberty 48 hours.
Transfer under section 6(3): as soon as practicable, not later than five days.

TRAP

additional clocks apply to APIO and third-party routes.

ASCII MASTER FLOW – PANEL 3/12: Four distinct routes: request, complaint and two appeals

REQUEST -> PIO decision

FIRST APPEAL -> senior departmental officer.

SECOND APPEAL -> CIC/SIC; PIO bears denial burden; decision binding under section 19(7).

SECTION 18 COMPLAINT -> access-system failures and inquiry powers.

CHIEF INFORMATION COMMISSIONER V. STATE OF MANIPUR (2011)

complaint is not an automatic substitute for the appellate disclosure remedy.

ASCII MASTER FLOW – PANEL 4/12: CIC and SIC composition and appointment

~~CIC: Chief + up to ten Information Commissioners~~

President appoints after PM + Lok Sabha LoP + nominated Union Cabinet Minister committee.

SIC: State Chief + up to ten State Information Commissioners.

Governor appoints after CM + Assembly LoP + nominated State Cabinet Minister committee.

ELIGIBILITY

eminence across listed fields; conflict disqualifications apply.

ASCTII MASTER FLOW – PANEL 5/12: Tenure, service conditions and removal after 2019

2019 AMENDMENT

Act-fixed term and Election-Commission pay linkage removed

-> Central Government prescribes tenure, pay and service conditions.

2019 SERVICE-CONDITION RULES: three-year term; age ceiling remains 65.

REMOVAL

CIC: President | SIC: Governor.

Proved misbehaviour/incapacity -> Supreme Court inquiry/report; direct statutory grounds remain separate.

ASCII MASTER FLOW – PANEL 6/12: Section 18 inquiry and evidence powers

COMPLAINT TRIGGERS

no PIO | inability to apply | refusal | delay | unreasonable fee | incomplete/false/misleading information.

INQUIRY POWERS

summons | oath | documents | affidavits | public records | commissions.
Commission may inspect covered records notwithstanding another objection.

LIMIT

evidence powers do not themselves supply the section 19 disclosure remedy.

ASCII MASTER FLOW – PANEL 7/12: Appeal, compliance, compensation and penalty

SECTION 19 APPEAL

binding decision + disclosure/compliance directions + compensation by public authority.

SECTION 20

personal PIO penalty: Rs 250 per day, maximum Rs 25,000, after hearing and statutory grounds.

Disciplinary recommendation remains distinct.

BOUNDARY

binding does not exclude Article 226/32 judicial review.

ASCII MASTER FLOW – PANEL 8/12: Exemptions, override, severability and third-party process

SECTION 8(1): enumerated protected interests

SECTION 8(2): public-interest override over Official Secrets Act and section 8(1) harms.

SECTION 8(3): twenty-year rule with specified exceptions.

SECTION 9: copyright limit.

SECTION 10: sever non-exempt material.

SECTION 11: consultation, not independent exemption or third-party veto.

ASCII MASTER FLOW – PANEL 9/12: Security organisations and statutory priority

SECTION 24

Second Schedule intelligence/security bodies generally exempt.

PROVISOS: corruption and human-rights allegations remain routes; HR disclosure needs CIC approval and uses special time.

SECTION 22: RTI Act overrides inconsistent secrecy law.

TRAP

security exemption is not absolute immunity from corruption or human-rights information.

ASCII MASTER FLOW – PANEL 10/12: Personal information after the DPDP substitution

DPDP ACT section 44(3), effective 13 November 2025

-> section 8(1)(j): information which relates to personal information.

Historical clause-specific tests are no longer current text.

SURVIVING ANALYSIS

section 8(2) | severability | other statutes | Article 19(1)(a) and privacy proportionality.

LIMIT

do not invent a stay, Constitution Bench reference or final judgment.

ASCII MASTER FLOW – PANEL 11/12: Case law and public-authority boundaries

STATE OF U.P. V. RAJ NARAIN (1975): right to know public acts.

S.P. GUPTA V. UNION OF INDIA (1981): open government.

CBSE v. Aditya Bandopadhyay (2011): existing records, not compelled new opinions.

CHIEF INFORMATION COMMISSIONER V. STATE OF MANIPUR (2011): complaint route != disclosure appeal.

RBI v. Jayantilal N. Mistry (2015): no blanket regulatory fiduciary shield.

SUBHASH CHANDRA AGARWAL (2019): CJI office is public authority, subject to exemptions/balancing.

ANJALI BHARDWAJ V. UNION OF INDIA (2019): timely transparent appointments.

Political-party CIC ruling is not a final Supreme Court holding.

ASCII MASTER FLOW – PANEL 12/12: Independence, reform, PYQ and qualified verdict

STRENGTHS: binding appeal | compliance directions | compensation | personal penalty

LIMITS: vacancies | backlog | weak records | underused penalties | service-condition dependence.

REFORM: fixed transparent appointments | protected conditions | digital interoperability |
proactive disclosure | reasoned penalty practice.

PYQ 2020: amendment and autonomy, 10 marks, 150 words.

VERDICT: legal teeth require independent, staffed and accessible commissions.